

Calendar Line 8**Case Name:** *Amrit Singh v. Ford Motor Company, et al.***Case No.:** 25CV459782**PLAINTIFF'S MOTION FOR ATTORNEY'S FEES & COSTS**

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Defendant opposes the motion, primarily arguing that the fees requested are excessive.

I. Reasonableness of Fees

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.

Plaintiff seeks \$8,348.40 in attorney's fees based on an 16.3 hours of completed and anticipated work, enhanced by a multiplier of 1.2. Plaintiff also seeks \$2,036.44 in costs. Plaintiff requests hourly rates of \$400 - \$600 for attorneys and \$145 for paralegals. Plaintiff contends the requested rates are reasonable because of rates awarded in the same market to attorneys with comparable experience, as well as the survey of billing rates. Defendant argues the rates and hours are inflated, the case involved no novel or unique issues

Having reviewed the moving papers, opposition, reply, declarations, and billing records submitted, the Court finds that the number of hours expended is generally reasonable in this routine Song-Beverly repurchase claim that resolved after approximately 5 months that resolved through settlement before expert discovery, dispositive motions, or trial. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. No complexity multiplier is warranted.

With respect to hourly rates, the Court finds that the requested hourly rate exceeds the prevailing market rate in Santa Clara County for comparable consumer warranty litigation. While the Court recognizes counsels' experience in Song-Beverly matters, the Court finds \$550 per hour to be a reasonable rate for partner-level work and \$350 per hour to be a reasonable rate for associate-level work. These rates more closely reflect the prevailing market rates for comparable services in this community. The requested \$145 for paralegal work is reasonable. Accordingly, the lodestar shall be recalculated.

With respect to costs, Plaintiff seeks recovery of \$2,036.44, which is not in dispute. The Court requires further information regarding costs "Other" in the amount of \$519.74

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court sets the reasonable hourly rates at \$550 for partner-level work, and \$350 for associate-level work.
2. The request for multiplier is denied.
3. Costs are recoverable upon sufficient showing. Otherwise, \$519.74 shall be deducted.
4. If no party contests this tentative ruling, the compensable time shall be reduced by .5 hour. The Court will adopt the foregoing rates and reductions and will award fees and costs in the recalculated amount.

Plaintiff shall prepare, serve, and submit a proposed order consistent with this ruling, including a supplemental recalculated fee and costs exhibit, accompanied by the necessary Forms EFS-020, within 7 days of the hearing.

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Calendar line 9

Case Name: *Philip A. Robb, as Trustee et al. v. Carol Cedar-Applebaum, et al.*

Case No.: 25CV467980

PLAINTIFFS' MOTION TO DETERMINE VALUE AND SEND BUYOUT NOTICE

Plaintiffs seek an order determining the fair market value of ten apartment properties that are the subject of this partition action and directing issuance of buyout notices pursuant to the Partition of Real Property Act ("PRPA"), including Code of Civil Procedure sections 874.316 and 874.317.

Plaintiffs rely on appraisals previously obtained and request that the Court adopt those valuations pursuant to Evidence Code section 813. Alternatively, Plaintiffs request that, if additional appraisal is required, the Court appoint Michael Chapman to conduct the valuation and proceed with the PRPA buyout process.

Defendants oppose the motion, arguing primarily that (1) Plaintiffs' appraisals are now more than one year old and do not reflect current market conditions; (2) the parties have agreed to participate in mediation and a court determination of value at this juncture would unnecessarily complicate and impair that process; and (3) Plaintiffs' proposed appraiser is not sufficiently neutral and the prior appraisal contains various alleged errors, omissions, and methodological deficiencies. Defendants also raise issues concerning allocation of appraisal costs and the proposed payment deadlines.

The Court declines to adopt the existing appraisals or appoint a valuation expert at this time.

The PRPA establishes a statutory procedure designed to permit co-owners of real property to resolve ownership disputes through a buyout process before a sale occurs. The valuation of the property is an important component of that process. However, the statute does not require the Court to adopt a party's valuation submission where the valuation is disputed, nor does it preclude the Court from managing the timing of the valuation process in a manner that promotes efficient resolution of the action.

Here, the parties have represented that they have agreed to participate in mediation. The Court finds that allowing the parties an opportunity to explore resolution before undertaking a court-directed valuation process is reasonable and consistent with the purposes of the PRPA. A judicially imposed valuation at this stage, particularly one based upon competing views regarding the reliability and currency of the appraisal evidence, may unnecessarily increase costs and create additional issues for the parties to litigate during mediation.

The Court also notes that the existing appraisals will have further aged by the time the statutory buyout process proceeds. Given the number of properties involved, the significant value at issue, and the parties' competing positions regarding methodology and neutrality, the Court is not persuaded that Plaintiffs' proposed appraiser should be selected without further consideration.

Accordingly, the Court will continue the motion to permit completion of the mediation process.